The ISO 37001

Compliance Checklist

speeki

The ISO 37001
Compliance Checklist

Bribery is a global problem that affects companies, governments, and everyday people trying to make an honest living. In the last 15 years, enforcement agencies have cracked down on bribery and corruption violations by organisations, leading to massive fines and even prison time for liable individuals. As a result, more and more companies are building an anti-bribery management system (ABMS) and getting it certified against ISO 37001. In 2022, there were 5,969 valid ISO 37001 certificates covering 12,837 sites. This is a massive jump from 2021 when there were just 2,896 valid certificates covering about 8,000 sites. ISO 37001 is one of the top ten most certified standards under ISO, and the only standard to experience over 100% growth between 2021 and 2022.

Speeki's ISO 37001 checklist will help your organisation successfully build an ABMS so you can prevent corruption, prepare for an audit and get certified against the standard.

Anti-bribery is an important part of protecting the reputation of your organisation among employees and customers. Bribery violations cost companies millions of dollars and often spread liability to related organisations as well. Protect your reputation, enhance your supply chain and demonstrate your commitment to integrity by getting certified against ISO 37001.

Step 1:

Develop a roadmap for the implementation of an ABMS and eventual certification

To develop the roadmap:

- get an idea of your organisation's existing anti-bribery controls, policies and potential gaps
- consider any past enforcement actions against your organisation (or within your industry) and what remedial steps were taken were taken Identify potential ISO37001 auditors
- identify potential ISO 37001 auditors.

Step 2:

Identify the potential scope of the ABMS and conduct a risk assessment

This step should include:

- assessing what organisational factors pose or create a bribery risk – such as industry, business model, countries of operation, applicable laws, company structure, and business associates and third parties
- identifying relevant stakeholders who should have input on the design of the ABMS
- conducting a risk assessment detailing your learnings from steps 1 and 2.

Step 3:

Develop an anti-bribery policy

Draft or update an anti-bribery policy that:

- ○ prohibits bribery
- ○ outlines leadership commitment to the ABMS
- ○ requires compliance by employees, business associates and leadership, with consequences for violations and rewards for supporting the ABMS
- ○ identifies objectives for the ABMS
- ○ establishes authority and independence for an anti-bribery compliance function
- ○ establishes a reporting mechanism and guarantees non-retaliation.

Step 4:

Seek leadership commitment from the governing body and top management

Commitment should include:

- ○ approval of the anti-bribery policy
- ○ alignment between business strategy and the ABMS
- ○ communicating the policy and importance of the ABMS to stakeholders.

Step 5:

Establish an anti-bribery compliance function

This function should be independent and have sufficient resources and authority to enforce the ABMS. You will need to:

- ○ get leadership commitment to guarantee the function's independence
- ○ establish a direct connection between this function and leadership.

Step 6:

Develop an annual plan for the ABMS

The annual plan should:

- ○ set objectives for the ABMS to prevent and reduce bribery
- ○ describe how the ABMS can achieve its objectives
- ○ include a monitoring plan and information on how the ABMS can be continually improved.

Step 7:

Awareness, training and communication

As part of this step, you must develop:

- an awareness and training programme for the ABMS that includes employees and business associates
- a plan on how to communicate the ABMS and anti-bribery policy.

Step 8:

Create a documentation system for the ABMS

Ensure all ABMS documentation is described, formatted, reviewed, protected and held according to organisational documentation standards.

Document key aspects of the ABMS such as:

- receipt of anti-bribery policy by employees and business associates
- status of training on the ABMS
- risk assessment results
- due diligence results on business associates and other transactions
- review and approvals of gifts, travel and entertainment requests.

Step 9:

Introduce the ABMS into the employment process

Introduce the concept of the ABMS to all new employees and business associates by:

- distributing the anti-bribery policy
- requiring compliance as a condition of employment or engagement.

Step 10:

Implement a due diligence programme to detect and prevent bribery risk

The due diligence programme should focus on:

- medium- to high-risk transactions or activities such as mergers, acquisitions and government relationships
- medium- to high-risk business associates
- individuals holding high-risk positions or operating out of high-risk jurisdictions.

Step 11:

Implement financial controls to manage bribery risk

Financial controls can include:

- financial reviews of books and records to ensure no improper payments are made or received
- a process to review gifts, travel, entertainment and other benefits
- additional levels of review or due diligence depending on spend with business associates.

Step 12:

Implement non-financial controls to manage bribery risk

Non-financial controls could include:

- requiring a bidding process for supplier selection
- a conflicts of interest management process
- internal fraud and insider trading policies.

Step 13:

Require controlled organisations and business associates to implement anti-bribery controls

Ensure that:

- controlled organisations adopt the ABMS or their own controls
- business associates have anti-bribery controls in place or adopt controls if needed
- any contracts have terms that allow you to terminate any business associates that engage in bribery.

Step 14:

Establish a process for gifts, travel and entertainment (GTE) and donations/sponsorships

This process should:

- implement a register to document all requests for GTE and donations/sponsorships
- include rules around review and approval for these benefits
- clearly describe to employees when giving and receiving of benefits is allowed
- ensure that giving and receiving of benefits is reviewed or audited periodically.

Step 15:

Implement a reporting system to raise concerns related to bribery

Ensure that the reporting system:

- is accessible and communicated
- allows for anonymous reporting
- prohibits retaliation
- ensures that reporters can receive advice or feedback related to any disclosures.

Step 16:

Implement an investigations policy and procedure

The investigations policy and procedure should:

- clearly identify when an investigation is required (for example, when a report is made)
- ensure that relevant personnel cooperate in the process
- ensure investigators have appropriate resources to carry out reviews
- provide status updates to relevant personnel or authorities
- ensure confidentiality.

Step 17:

Establish a monitoring programme to review ABMS effectiveness

The monitoring programme should include:

- which areas of the ABMS need to be evaluated
- which teams are responsible for monitoring
- how monitoring will be carried out
- when monitoring activities will occur
- who the results of monitoring will be distributed to
- how the results of the monitoring will be documented according to organisational standards
- an internal audit review of the ABMS
- reviews of the ABMS by top management and governing body
- a review of the ABMS by the anti-bribery compliance function.

Step 18:

Remediate non-conformities and continually improve the ABMS

Based on the results of the monitoring programme, the organisation should:

- proactively remediate non-conformities
- identify and resolve the causes of any issues
- make changes to the ABMS if needed
- continually improve the ABMS based on the results of monitoring, including:
  - streamlining processes for review and approval
  - implementing enhanced technology to optimise existing processes
  - evangelising the importance of the ABMS with non-compliance personnel
  - increasing the frequency or quality of training programmes.

Author: Scott Lane

Scott Lane is the CEO and Founder of Speeki. Scott is a lawyer and technologist, and is a leading practitioner in the governance, anti-corruption and compliance space, having consulted for thousands of clients in over 100 countries. Scott has built, designed, reviewed and managed over 2,500 programmes for companies around the globe, and has been an active leader in the ESG risk areas for over 25 years.

About Speeki

Speeki helps companies design, build, manage, report and assure their non-financial business performance within an all-in-one sustainability management system. Covering over 20 different disciplines, Speeki helps companies drive better performance and create value from their non-financial initiatives.

With a platform to design, implement, monitor, measure, report and track non-financial initiatives, companies can focus on non-financial reporting, assurance and certification.

At Speeki, we use our proprietary Engage™ framework to help companies maximise their non-financial investment by making data-driven decisions that add value to their businesses and the planet.

Our mission is to help businesses integrate non-financial performance initiatives into their operations and create long-term value for their stakeholders. With Speeki, you can be confident that you are making informed decisions that align with your business goals, no matter where you are in your sustainability journey.

speeki

For more information contact us at

info@speeki.com

Copyright © Speeki Pte Ltd. All rights reserved.

speeki.com